

25NWCV00257 25NWCV00257

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Division: Civil Law and Motion

Department: L

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Case Number: 25NWCV00257 Hearing Date: June 25, 2026 Dept: L

Defendant Toyota Motor Sales,

U.S.A., Inc's Motion to Compel Plaintiff Diego Conzalez's Deposition is GRANTED.

Defendant is awarded \$250.00

in sanctions, payable within 60 days.

Defendant to give notice.

Background

This is a lemon law action

regarding a 2024 Toyota Tundra. On January 22, 2025, Plaintiff Diego Conzalez ("Plaintiff") filed this action against Defendant Toyota Motor Sales, U.S.A., Inc. ("Defendant") and Does 1 to 10. The Complaint alleges the following causes of action: 1) Violation of Song-Beverly Act - Breach of Express Warranty, 2) Violation of Song-Beverly Act - Breach of Implied Warranty, And 3) Violation of Song Beverly Act Section 1793.2.

On September 2, 2025, Defendant

noticed Plaintiff's deposition for October 2, 2025. (Jackson Decl., ¶ 2, Exh.

A.) To date, Plaintiff's deposition has not been taken. (Jackson Decl., ¶ 9.)

Defendant now moves to compel the

deposition of Plaintiff. Defendant also requests sanctions in the amount of \$750.00.

Legal Standard

"If, after service of a deposition notice, a party to the action. . .without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc. § 2025.450, subd. (a).)¿

Meet and Confer

"The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc. § 2025.450, subd. (b)(2).)

On September 25, 2025, Plaintiff served objections to Defendant's deposition notice. (Jackson Decl., ¶ 2, Exh. B.) On October 7, 2025, Defendant sent Plaintiff a meet and confer letter offering dates for the deposition of Defendant's Person Most Knowledgeable and requesting Plaintiff's availability for deposition. (Jackson Decl., ¶ 3, Exh. C.) Plaintiff's counsel indicated that Plaintiff would provide dates for the deposition. (Jackson Decl., ¶ 4, Exh. C.) On five other occasions throughout October, Defendant attempted to schedule a date for Plaintiff's deposition. (Jackson Decl., ¶¶ 5-8, Exh. C.) To date, Plaintiff has not provided a date for his deposition, and Plaintiff's deposition has not been taken. (Jackson Decl., ¶ 9.)

The Court finds that the meet and confer requirement has been met.

Discussion

Defendant argues that it has requested Plaintiff's availability for his deposition at least six times since October 2025, to no avail. Defendant asserts that Plaintiff's deposition is necessary to prepare for trial, currently set for September 26, 2026.

In opposition, Plaintiff's counsel represents that he intends to meet and confer further to schedule Plaintiff's deposition. (Sanders Decl., ¶¶ 4, 11.) Plaintiff also argues that Defendant has failed to file a separate statement pursuant to California Rules of Court, Rule 3.1345(a).

In reply, Defendant asserts that, as of June 17, 2026, when the reply was filed, Plaintiff has made no further meet and confer efforts. (Critchlow Decl., ¶ 2.) Defendant notes that a separate statement is not required for motions to compel appearance at a deposition.

The Court initially finds that separate statements are not required for motions to compel initial appearances at a noticed deposition. Per California Rules of Court, Rule 3.1345(a), separate statements are only required for motions to compel answers or the production of documents at a deposition. (Cal. Rules of Court, Rule 3.1345(a)(4)-(5).) For such motions, a separate statement is used to narrow issues regarding particular issues—i.e., objections to particular questions or documents at a deposition. The instant Motion only seeks to compel Plaintiff's presence at a noticed deposition.

The Court acknowledges Plaintiff's counsel's willingness to meet and confer further regarding a deposition date. However, without a scheduled deposition date, the Motion is not moot. To date, Plaintiff's deposition has not been taken and no date has been scheduled.

Accordingly, Defendant's Motion to Compel Plaintiff's Deposition is granted. The parties shall meet and confer to determine the date, time, and location of Plaintiff's deposition. The deposition shall take place no later than 30 days from the date of the Court's issuance of this Order. The date may be extended by agreement of the parties.

Sanctions

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated,

unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2025.450, subd. (g)(1).)

Defendant requests \$750.00 in sanctions against Plaintiff.

Plaintiff argues that the sanctions amount is unreasonable and requests that the Court reduce the amount of sanctions. (Sanders Decl., ¶¶ 6-7.)

The Court awards reduced sanctions in the amount of \$250.00, payable within 60 days.